

Court No. - 2

Case :- WRIT - C No. - 27215 of 2012

Petitioner :- Deepak Mishra

Respondent :- M.D. Kanpur Electricity Supply Co. Ltd. And Others

Petitioner Counsel :- Jainendra Kumar Mishra

Respondent Counsel :- Amrit Lal Yadav

Hon'ble Sudhir Agarwal,J.

1. This writ petition is directed against the order dated 12.04.2012 passed by Electricity Ombudsman rejecting appeal of petitioner and confirming the order passed by Consumer Grievance Redressal Forum, KESCO Kanpur whereby it has directed for preparation of electricity bill to petitioner for the period of 30.07.1991 to 26.01.2010 on the basis of 180 units per month.

2. Learned counsel for the petitioner submitted that as per the check meter installed at petitioner's premise it was found that existing meter No. 16506483 was running fast by 7.6% and, therefore, average consumption of petitioner ought to be taken as per the check meter and not otherwise and placed reliance on Para 5.6(e) of Electricity Supply Code, 2005, which reads as under:

"5.6(e) In case a check meter is installed, and if after 7-15 days of the period of test, the existing meter is found to be fast or slow beyond the permissible limits, and the test results are not disputed by the consumer, then the same would be removed leaving the check meter in its place for future metering, and bills of previous three months prior to the month in which the dispute has arisen shall be adjusted in the next bill as per the test results. Where the test results are disputed, the procedure as per 5.6(c) as above, as the case may be, shall be followed."

3. The aforesaid provision shows when check meter shows that existing meter is found slow or fast beyond permissible limits, in that case the consumption of consumer shall be taken according to previous three months prior to month in which the dispute has arisen and electricity charges shall be taken accordingly. In the present case, it is evident that petitioner did not make full payment of electricity dues for the last more than a decade. The last bill issued to petitioner on 30.07.1999

was for Rs. 26,496/-, whereagainst petitioner had paid only Rs. 14,000/- though there was no dispute regarding aforesaid bill. Thereafter on several occasions the petitioner made complaint about the meters and meters were removed and changed from time to time.

4. The petitioner's complaint filed before Electricity Ombudsman itself shows that the bill for the period of 23.07.1998 to 30.07.1999 was accepted by petitioner for consumption of 2631, i.e., for the reading of 26496. Thereafter the earlier meter No. 5858 was replaced on 22.09.2007 by meter No. N.G.-1216500328. This meter was again replaced on 31.05.2009 by another meter No. 16505139. Then again new meter was installed on 26.01.2010, i.e., meter No. 16506483. It is this meter which was checked through check meter and found running fast by 7.60%. The petitioner contended that the check meter during the period of about 20 days recorded consumption as 85.04 units, meaning thereby the bill should have been issued to petitioner for monthly consumption of about 128 to 130 units and not 180 units for which the orders have been passed by courts below.

5. In my view Para 5.6(e) does not talk of issuance of bill on the basis of check meter but it talks preparation of bill on the basis of previous three months prior to month for which the dispute has arisen. Meaning thereby, if we apply this provision it would mean that average consumption of three months prior to 30.07.1999 should be the basis whereof the bill needs be prepared but during that period the aforesaid Electricity Supply Code, 2005 was not applicable. Moreover, in the meantime several meters have been replaced from one after another and there is nothing to show that for the last almost more than 10 years consumption pattern has remained same.

6. In these peculiar facts and circumstances, in my view, the authorities below have taken a just and equitable view which warrants no interference.

7. The writ petition, therefore, lacks merit. Dismissed.

Order Date :- 29.5.2012

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